

The Claremont City Council held a meeting on Wednesday, August 23, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

1. PLEDGE OF ALLEGIANCE

2. ROLL CALL

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Allen Damren
Mayor Charlene Lovett
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Also present:

Ryan McNutt, City Manager

3. AGENDA CHANGES

There were no changes to the agenda.

Mayor Lovett asked to have Rule #23 suspended to allow action on agenda items even though the packet was not mailed on the preceding Friday as the Rule requires (due to administrative error).

Motion: To suspend Rule #23 for this meeting.

Made by: Mr. Koloski **Second:** Mr. Damren

Vote: Unanimous in favor

4. MAYOR'S NOTES

In the month of August, every member of our Federal delegation has been to Claremont - Senator Hassan for the "Ground-Making" at the Claremont Maker Space, and Congresswoman Kuster, who is leading a bi-partisan task force on sexual violence against women, was here to talk to stakeholders who deal with this issue. Mayor Lovett and City Manager McNutt attended an event with Senator Shaheen at the hospital to discuss a bipartisan approach to improving the Affordable Care Act.

Thursday, August 24th at 6:30 PM at the Community Center there is a meeting for anyone who is a single-family homeowner who is occupying the home with limited income. USDA Rural Development Office, Habitat for Humanity and Southwestern Community Services will be giving a presentation on some of the programs that are available to homeowners to help them improve and modernize their homes as well as to remove safety hazards for those 62 and over. It includes lead remediation.

Mrs. Towle announced that due to health concerns she will not be running for re-election in November. She is proud of her accomplishments on the Council and said it is time to give someone else in Ward 1 the opportunity to serve.

Mr. Pope reminded everyone about the Back to School Festival this Saturday at Barnes Park. Mayor Lovett added that there will be free lead screening at the Festival for students who will be entering the school system for the first time.

Mayor Lovett and City Manager McNutt presented Mr. Bergeron with a plaque and gift basket in appreciation for his many years of leadership and professionalism in serving the community on the Council. This was Mr. Bergeron's final meeting before moving to Florida.

5. CITIZEN'S FORUM

Gary Dickerman, Ward 2, chair of the Claremont Conservation Commission, said that earlier this month Fish and Game had cleared the parking lot and removed the silt from the ramp. On behalf of the Conservation Commission, Mr. Dickerman emailed Garrett Graaskamp, access director for Fish and Game, to thank him and to offer some suggestions for improvements to the launch. Mr. Dickerman read a portion of Mr. Graaskamp's response:

The Ashley Ferry BA is approaching the end of its useful life and will be considered for refurbishment in the next few years. The upgrades you mentioned, and perhaps others, can be on the table for consideration. Infrastructure that reduces long-term annual maintenance and enforcement costs are prioritized more highly. I would be willing to sit down with you and other City representatives to discuss what might be possible and how it would be funded.

Thank you again for your enthusiasm and support.

Sincerely,

*Garret Graaskamp, P.G.
Coordinator
NHFG-SPBAP*

Mr. Dickerman said this seems like an opportunity to make some improvements at the launch area. Mayor Lovett asked if Mr. Dickerman thought it might be useful to hold a public forum when the discussion is held so people could come and listen and provide suggestions. Mr. Dickerman agreed that it is important to get public input. Mayor Lovett asked Mr. Dickerman to

find out what the state's time frame might be with this. She said ideally the City should have a plan together before May 2018

Mr. Raymond was pleased that the Claremont launch is getting attention as the launch at Lake Sunapee can be quite challenging.

Mr. Folta, Ward 3, reminded everyone that in November, nine seats on the Council will be up for election and that filing starts in mid-September for anyone who wants to run.

Mary Walter said she hopes everyone will vote for Recycled Percussion to come to Claremont for the last show of their tour.

6. OLD BUSINESS

There was no old business to discuss.

7. NEW BUSINESS

A. Presentation on Keno from Maura McCann, Marketing Director

(Mr. Koski recused himself from this discussion and subsequent vote on the grounds that he owns a pouring establishment that could benefit from Keno.)

Mayor Lovett said that allowing Keno to come to Claremont requires a vote from the public, but it is Council who must first decide whether or not to place the question on the ballot. This presentation is for the Council to learn more about Keno before voting on the ballot question.

Mr. McNutt asked how much the state gets from the Powerball Lottery. Ms. McCann said \$.28 - \$.30 on the dollar. This past fiscal year (ending June 30th) the state took in \$75M - \$79M (books are not yet closed) in net profit which is earmarked for education.

Keno603 is the newest lottery game they would like to offer in pouring establishments in New Hampshire. It is a "rapid-draw" game, on sale between 11 AM and 11 PM, 7 days a week, 365 days a year with drawings every 5 minutes.

Playslips may be provided by self-serving machines so as not to impose on waitstaff and bartenders. However, waitstaff will be able to answer questions about the game and direct patrons to the machines. If the establishment chooses, there may also be lottery vending machines available to dispense other gambling products.

There will be oversized monitors in the establishments to select and display the winning numbers.

There are 23 pouring establishments in Claremont. NH Lottery will be reaching out to each of them to see if they are interested in selling Keno603 (and other products).

The City must pass it locally first before the establishments can sell.

New Hampshire was the first state in the country to have a legal lottery.

NH Lottery will advertise the availability of Keno and will provide elements within each establishment – “Keno Caddies” to hold pencils and playslips; napkins; aprons for waitstaff that advertise Keno and contain pockets to hold playslips in; and signage.

The businesses that sell Keno get an 8% sales commission. This is the highest sales commission in the United States. Research has shown that patrons stay longer in establishments that sell Keno, which means they buy more from the establishment. Keno also draws new patrons. Establishments can also get a bonus if they sell a winning Keno ticket worth \$10,000 or more equal to 1% of the prize with a cap at \$75,000.

There is a 5% sales commission for selling other NH Lottery products with additional bonuses for increasing product sales.

They expect Keno to be up and running in mid-December. There are approximately 250 locations in New Hampshire to sell products. Projected revenue for a full year of sales are \$43,750,000 from Keno with a net to education of \$8,472,500. The net to education is earmarked to support full-day kindergarten (\$1100 per pupil).

Currently \$25M is spent by New Hampshire residents playing Keno in Massachusetts.

Steps to adopting Keno in Claremont include:

Step 1 – address local legislative body; legislative body votes to put Keno on the ballot)

Step 2 – public hearing (lottery representatives will attend)

Step 3 – public vote “Shall we allow the operation of keno games within the City of Claremont?”

Cities in New Hampshire will vote on this in the fall; towns will vote in the spring at Town Meeting. So far, Manchester, Concord, Berlin and Franklin have chosen to put this on the ballot in November.

Mr. McNutt said that this presentation is available for public viewing on the City's website at <http://www.claremontnh.com/government/mayor-and-city-council/default.aspx>

Ms. McCann said the NH Lottery website has information about Keno for interested businesses (<http://nhlottery.com/keno>).

Claremont will get \$1100 per pupil even if the voters choose not to sell Keno here. That amount will increase as Keno sales throughout the state increase.

Currently, the net amount is swept from the bank accounts of the stores that sell the lottery tickets each week to determine commissions. It is expected that the process will be similar for Keno.

The education funding is scheduled to start in FY19. The Department of Education disperses the money to the cities and towns.

The legislation enabling Keno does not contain a sunset or reauthorization clause so it will remain in effect until a separate piece of legislation ends it.

Money from lottery sales goes into the Education Trust Fund every month.

Mrs. Towle asked Mr. Koloski for his opinion of this idea as the owner of a pouring establishment. Mr. Koloski replied that he is concerned that it may harm customer service and he while he may gain some customers, he stands to lose others who may be opposed to it. He said he needed to learn more before forming a definitive opinion.

The public hearing on this must be held between October 8th and October 24th.

The Council thanked Ms. McCann for an informative presentation.

B. Resolution 2018-6 to place the question of allowing Keno in Claremont to be on the ballot in November

RESOLUTION 2018-6

A Resolution Allowing KENO in the City of Claremont

*WHEREAS, on July 12, 2017, the State of NH voted to allow the game of KENO to operate within the state following proper permitting;
and WHEREAS, the State of NH requires that each municipality vote to allow KENO within their boundaries;*

NOW, THEREFORE, BE IT RESOLVED by the governing body of the City of Claremont that a question be placed on the November 2017 ballot asking "Shall we allow the operation of Keno games within the City of Claremont?"

Motion: To adopt Resolution 2018-6

Made by: Mr. Damren **Second:** Mr. Bergeron

Vote: 7 in favor; 1 abstention – motion carries

Motion: To schedule the public hearing on October 19th

Made by: Mr. Damren **Second:** Mrs. Towle

Vote: 7 in favor; 1 abstention – motion carries

The hearing will be held at 6:30 PM at the Community Center.

Mr. Koloski re-joined the meeting.

C. Legislative Initiatives -Legislative delegation

Mayor Lovett said that the purpose of tonight's meeting was to have an opportunity to share with the delegation ideas from the Council, to hear what they may be initiating in the upcoming legislative session and to work more efficiently as a team in pursuit of legislation that will benefit Claremont.

Mayor Lovett thanked the representatives for their (mainly volunteer) work on behalf of the community.

John Cloutier, Ward 1, representing Sullivan County District 10, currently sitting on the House Public Works and Highway Committee; the Senate/House joint capital budget overview committee; and the Senate/House joint long-range capital planning utilization committee.

Ray Gagnon, Ward 3, currently serving on the Executive Departments and Administration (ED&A) committee

John O'Conner, Ward 2, first-term representative for District 4, currently serving on the children and family law committee

Mr. Gagnon said the window to submit legislation is September 6 – 22.

Mayor Lovett said Senator Hennessy had also been invited to attend this meeting, but she was unable to come.

Mayor Lovett sent a list of retained bills to the Council and the delegation that she had testified at that are in various committees. They are to be reported out of committee by November 16th with the committees' recommendations. They include SB237 (childhood lead screening); SB193 (funding for school choice – the City testified against this bill); and HB413 (NH retirement system); HB525 (4% annual reduction in the education stabilization grant). This may not be a

comprehensive list of retained bills, but they are the ones that the Mayor is the most familiar with that will affect Claremont.

Mayor Lovett asked how can the City and the delegation best work together to influence the committees' recommendations. Mr. Cloutier suggested the Council "bombard" all of the members of the appropriate committees with emails and/or snail mail. He also advised attending the hearings. Starting in September, there is a house calendar that comes out every week that shows the date of the hearings that the committees schedule on the retained bills. A committee will vote on a retained bill when the date is set – the chairman will announce it. Each committee will decide if the bill (a) ought to pass; (b) ought to pass with amendment; (c) refer for further study; or (d) inexpedient to legislate (the bill is rejected). The committees' recommendations go to the full House in early January when the House takes up all of the retained bills from 2017. It is the first thing the House does in January.

Mr. Gagnon said each committee does things differently. He said the weekly calendar is available on line (<http://www.gencourt.state.nh.us/>) every Thursday starting in September. (Also available through NHMA (<https://www.nhmunicipal.org/> .))

Mayor Lovett asked what the best way for the Council, individually or collectively, is to communicate with the committees' chairs while simultaneously keeping the delegation informed. She said, "It is quite helpful for us to give them our position – whether in a letter or by testifying at a hearing – but it is also very effective if we can ensure that you guys are available to also testify or sign the blue sheet." Mr. O'Connor advised attending the hearings in Concord – verbal testimony resonates most, particularly in light of the volume of emails the committee members receive. Claremont doesn't get the volume of representation at hearings that Manchester or Concord bring.

Mr. Gagnon said that any letter on City or School letterhead goes to the top of his committee's chair's pile and the chair will make certain that everyone sees it, but he agreed that physical presence, especially an elected official, is most meaningful. He suggested copying all four members of the delegation on all emails the City may send.

Mayor Lovett said she would send to each councilor a list of retained bills that they have testified on.

Mayor Lovett asked the Council members what they wanted to see for an LSR.

Mr. McNutt said maintaining properties of absentee owners – there are restrictions on what the City can do when dealing with private property owners.

He said in Massachusetts, the court can be petitioned to appoint a receiver, someone who is capable of taking care of the property. It is a very effective tool.

Mr. Damren asked them consider reworking current use. Claremont is different than Manchester or Concord and the current use law in effect hurts the City because of the high percentage of properties in current use (70%).

Mr. Pope asked that they consider ways to incentivize energy production.

Mr. Raymond asked that the rooms and meals tax be reconsidered so that revenue could once again come back to the City. There was some discussion on how best to approach this. It was agreed that those councilors that are available come together to discuss strategy, to produce an LSR and get it to the delegation by September 22nd. Mayor Lovett will work with the delegation to orchestrate it.

BREAK – 8:22 – 8:32

D. Motion to Accept SB 38 Funds (\$277,379.33) – acceptance of Highway Aid Funds & Public Hearing

Motion: The Claremont City Council, after a public hearing duly noted, hereby moves to accept a check for \$277,379.33 from the State of New Hampshire that represents Claremont's share of an appropriation by the Legislature in SB 38 for road work per RSA 31:95B.

Made by: Mr. Simonds **Second:** Mrs. Towle

Discussion on the motion:

Mr. Sweet said he plans to use the money to address issues on Main Street (from Elm to Citizen) and on Washington Street (the worst sections of the outer-most lanes both inbound and outbound).

Mr. Sweet also gave the following updates:

- Upper Main Street project (from Opera House Square to Union). There should be a bid-opening the first of October. The project is scheduled to get under way in the spring/summer of 2018. Mayor Lovett asked Mr. Sweet to provide a timeline and benchmarks for the Main Street project in his next monthly report to the Council.
- The project manager is still working through ROW issues on the North and Main project. He is hoping it will go out to bid next year.
- Mr. Sweet has a verbal agreement with a private landowner for placement of the “Welcome to Claremont” sign on Route 12. It will be on the west side of the street between Roosevelt and Bowker. He is also hoping to put up an Amtrak sign.
- An easement for the dry hydrant near the high bridge has been signed. Mr. Sweet and the Fire Chief will start ordering parts for it right away and hope to have it installed soon

- Estimates on the two red-listed bridges have been received from the state (Plains Road \$700,000; Myrtle Street \$1.1M-\$1.2M) and the City has applied for construction. We are awaiting confirmation. These two bridges should be on the list for the ten-year plan which will entitle us to 90/10 cost sharing.

Mayor Lovett expressed the Council's gratitude for the number of projects getting done and for the willingness of private property owners to assist the City.

Mr. Koloski repeated his concerns that the guardrails along Route 12 coming from Ascutney have not been mowed all summer. He asked how to communicate this to the state. Mr. Sweet said he would call and discuss it.

Mayor Lovett opened the public hearing. No one wished to speak. The hearing was closed.

Vote on the motion Unanimous in favor

E. Motion to Accept \$50,787 from NH Charitable Foundation and \$11,787 from Claremont School District towards the resurfacing of the Claremont Track, Public Hearing

Motion: To Accept Funds toward Track Resurfacing

The Claremont City Council hereby accepts with sincere appreciation the donation of \$50,787 from the Repap Fund -NH Charitable Foundation and \$11,787 from the Claremont School District towards the resurfacing of the Claremont Track.

Made by: Mr. Raymond **Second:** Mr. Damren

Public Hearing

Mayor Lovett thanked everyone who helped to make this happen. This track is used all the time. Mr. McNutt commended Mr. Brislin, Mr. Damren and the school superintendent.

Mr. Sweet said that the facilities at the park could be used for state track and field meets if there was a second pit and a means to protect runners on the track during javelin events. Mr. Sweet said he will get an estimate on creating the second pit. Mayor Lovett asked Mr. McNutt to get an estimate for the other improvements. Mayor Lovett asked Mr. McNutt to speak with the school superintendent about what needs to be done for Monadnock Park to be used to host state events.

There were no further comments and the hearing was closed.

Vote on the motion: Unanimous in favor

F. Policy on Naming City Properties and Streets – First Reading

Mr. Bergeron said the committee worked hard to keep this as nonpolitical as possible. The committee researched other communities for similar policies and found that many of them do not name properties. Other cities do, but they have no policy. The committee used the policies they did find to create this one for Claremont. At the last policy committee meeting, they made one change (from what was introduced to the Council at the previous meeting). The following language was added under Section 4A (3) v: *Any name changes to any facilities within the historic district must be approved by the historic district commission.*

Section 2(A), the term “City Hall Police” was changed to “City Hall”.

The committee received one written comment from the public, who recommended doing more plaques rather naming properties.

Mr. Sweet was consulted regarding street names. Mr. Sweet favored the idea of creating “honorary street names” rather than renaming a street to alleviate the complications of street renaming.

Mr. Bergeron and Mr. Pope recommended that the policy be approved for second reading and public hearing.

Motion: That the Council approve the naming policy for City properties and streets on first reading and move it ahead towards second reading.

Made by: Mr. Pope

Mr. Folta asked if this is an ordinance. Mayor Lovett asked if it had been reviewed legally. Mr. McNutt said no. Mayor Lovett asked that it be reviewed legally and formatted as an ordinance. It was agreed that once it returns, it will have to go to first reading again.

Mr. Pope withdrew his motion. He asked the City Manager to have it legally reviewed and formatted as an ordinance. The Council agreed with this action.

Mayor Lovett thanked the committee for their work on this.

Mr. Koloski asked what the timeframe is for naming. Mr. Bergeron read from Section 4A(4)(iii): *...that city owned facilities named in honor of deceased persons will not be considered until at least one year after their deaths.*

Mayor Lovett asked that this be placed on the agenda for the first Council meeting in September.

G. Council vacancy discussion

Sections 16 & 17 of the City Charter describes the process for filling vacancies on the Council:

Section 17

When a vacancy occurs in the office of assistant mayor, an assistant mayor shall be elected from among the remaining councilors by a majority vote of the members of the council and shall serve for the completion of the unexpired term.

When a Councilor is appointed to fill the assistant mayor's seat (as described in Section 17), that Councilor's seat in turn becomes a vacancy, which is then filled by the process described in Section 16.

Section 16

Vacancies in the office of councilor resulting from a failure to elect a candidate thereto, or which occur at any time after the election of a candidate thereto, shall be filled by some qualified person who receives the votes of a majority of the remaining members of the city council. Such appointment shall be made at or before the second regular meeting after which such vacancy occurs and the councilor so appointed shall serve until his/her successor takes office. In the event a vacancy occurs, there shall be an election conducted at the next regular municipal election and the councilor elected to fill the vacancy shall serve for the balance of the unexpired term.

This vacancy must be filled by or before the second meeting in September (9/27/17).

Mr. Koloski nominated Mr. Pope, who declined.

Mrs. Towle nominated Mr. Damren, who accepted. Mr. Bergeron seconded the nomination. All were in favor of the nomination.

Mr. Damren will assume the role of assistant mayor effective September 1, 2017.

A councilor at large seat is now vacant. The Council turned to discussing the process of filling it. Mr. Pope and Mrs. Towle shared their memories of how previous vacancies had been filled. Mrs. Towle said there was a moderator with pre-selected questions. Mr. Pope said the Council held a special meeting for the sole purpose of interviewing candidates. The candidates were each asked five questions. Councilors received a packet the Friday before the meeting containing the applicants' letters and any supporting materials.

Mr. Koloski wanted the application process to be clear, because there had been some confusion about it in previous rounds. Mr. Pope said that previously

applicants were asked to complete a Boards and Commissions form, by request of the former City Solicitor (along with a letter of interest).

Mr. McNutt said he had received a packet of information outlining the process. It included the wording for the advertising. He said he would scan and email it to the Councilors and invited their requests for changes before moving forward with posting it. He said he could begin posting as soon as the notices are finalized.

The Mayor asked that it be posted Thursday after receiving feedback from the Council. Letters of interest can be submitted until the Friday before the first September meeting. Council will finalize the questions to be asked at the September 13th meeting. The Council will hold a special meeting on September 21st to conduct the interviews and to vote.

(Mr. McNutt will be away between 9/14 and 9/26 so he will be unable to attend the special meeting.)

8. FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Damren asked to see the reserve policy for water and sewer.

Mrs. Towle thought that the marketing for the eclipse events at the library had failed. She said she didn't see anything in the media about it until after the event.

Mr. McNutt commended the library for the work that the library did for the eclipse.

Mr. Koloski said that there is a perceived shortage of police officers in the City (based on an article in the Valley News). Mayor Lovett said she wanted an overview from the police department outlining the shortage and the strategies being employed to mitigate it.

Mr. McNutt said that, based on a number of recent events, he is confident that staffing is no longer an issue for the City. He said he would ask the Chief to attend the next Council meeting to discuss it.

It was agreed that having Mr. Simonds give a presentation on the Sherriff's Department – what it does and how it interfaces with the City police department – would be very helpful.

Mr. Bergeron asked if the soup kitchen location relative to the school drug-free zone matter had been addressed. Mr. McNutt said the City Planner has been quite busy and needs more time.

Mr. Koloski asked for the status of the camera that was installed several years ago on Pleasant Street. Mr. McNutt said he would look into it.

9. CONSULTATION WITH LEGAL COUNSEL

There was none.

10. ADJOURNMENT

At 9:34 p.m., a motion was made by Mr. Damren and seconded by Mrs. Towle to adjourn.

Voice vote: unanimous in favor

PLEASE NOTE: Claremont City Council's next scheduled meeting will be on Wednesday, September 21, 2017, at 6:30 p.m. in the Council Chambers at City Hall.

Respectfully Submitted,

deForest Bearse

Resource Coordinator